

EMPLOYMENT CONTRACT

This Employment Contract (this "Contract") is made effective as of December 27, 2021, by and between Cool-Leo A/C & Heat of 802 legend spring drive, katy, Texas, 77494 and Joseph Weberling of 4514 Atascocita Road, Humble, Texas, 77346.

A. Cool-Leo A/C & Heat is engaged in the business of HVAC & Refrigeration. Joseph Weberling will primarily perform the job duties at the following location: _____, _____, Texas.

B. Cool-Leo A/C & Heat desires to have the services of Joseph Weberling.

C. Joseph Weberling is an at will employee of Cool-Leo A/C & Heat. Either party is able to terminate the employment agreement at any time.

Therefore, the parties agree as follows:

1. EMPLOYMENT. Cool-Leo A/C & Heat shall employ Joseph Weberling as a(n) Technician. Joseph Weberling shall provide to Cool-Leo A/C & Heat duties as needed. Joseph Weberling accepts and agrees to such employment, and agrees to be subject to the general supervision, advice and direction of Cool-Leo A/C & Heat and Cool-Leo A/C & Heat's supervisory personnel.

2. BEST EFFORTS OF EMPLOYEE. Joseph Weberling agrees to perform faithfully, industriously, and to the best of Joseph Weberling's ability, experience, and talents, all of the duties that may be required by the express and implicit terms of this Contract, to the reasonable satisfaction of Cool-Leo A/C & Heat. Such duties shall be provided at such place(s) as the needs, business, or opportunities of Cool-Leo A/C & Heat may require from time to time.

3. COMPENSATION OF EMPLOYEE. As compensation for the services provided by Joseph Weberling under this Contract, Cool-Leo A/C & Heat will pay Joseph Weberling \$25.00 per hour. This amount shall be paid every two weeks, no later than one days after the payroll period that ended on the preceding Thursday and subject to applicable federal, state, and local withholding. Upon termination of this Contract, payments under this paragraph shall cease; provided, however, that Joseph Weberling shall be entitled to payments for periods or partial periods that occurred prior to the date of termination and for which Joseph Weberling has not yet been paid, and for any commission earned in accordance with Cool-Leo A/C & Heat's customary procedures, if applicable. This section of the Contract is included only for accounting and payroll purposes and should not be construed as establishing a minimum or definite term of employment.

4. COMMISSION PAYMENTS. In addition to the payments under the preceding paragraph, Cool-Leo A/C & Heat will make commission payments to Joseph Weberling based on 5% of Invoice profit. This commission will be paid semi-monthly on the first day and the fifteenth day of the month, each payment corresponding to the semi-monthly period that ended approximately fifteen days prior to the payment date. Upon request by Joseph Weberling, Cool-Leo A/C & Heat will make advances against expected commissions in accordance with Cool-Leo A/C & Heat's usual policies.

Right to Inspect. Joseph Weberling, or Joseph Weberling's agent, shall have the right to inspect Cool-Leo A/C & Heat's records for the limited purpose of verifying the calculation of the commission payments, subject to such restrictions as Cool-Leo A/C & Heat may reasonably impose to protect the confidentiality of the records. Such inspections shall be made during reasonable business hours as may be set by Cool-Leo A/C & Heat.

Death of the Employee. If Joseph Weberling dies during the term of this Contract, Joseph Weberling shall be entitled to payments or partial commission payments for the period ending with the date of Joseph Weberling's death.

5. EXPENSE REIMBURSEMENT. Cool-Leo A/C & Heat will reimburse Joseph Weberling for the following "out-of-pocket" expenses in accordance with Cool-Leo A/C & Heat policies in effect from time to time:

- travel expenses
- cost of job-related education, excluding textbooks, if course work is successfully completed with a grade of PASS or better

6. RECOMMENDATIONS FOR IMPROVING OPERATIONS. Joseph Weberling shall provide Cool-Leo A/C & Heat with all information, suggestions, and recommendations regarding Cool-Leo A/C & Heat's business, of which Joseph Weberling has knowledge, that will be of benefit to Cool-Leo A/C & Heat.

7. NON-COMPETE AGREEMENT. Joseph Weberling recognizes that the various items of Information are special and unique assets of the company and need to be protected from improper disclosure. In consideration of the disclosure of the Information to Joseph Weberling, Joseph Weberling agrees and covenants that during his or her employment by Cool-Leo A/C & Heat and for a period of 1 Year following the termination of Joseph Weberling's employment, whether such termination is voluntary or involuntary, Joseph Weberling will not directly or indirectly engage in any business competitive with Cool-Leo A/C & Heat.

This covenant shall apply to the geographical area that includes the area within a 40-mile radius of Katy. Directly or indirectly engaging in any competitive business includes, but is not limited to: (i) engaging in a business as owner, partner, or agent, (ii) becoming an employee of any third party that is engaged in such business, (iii) becoming interested directly or indirectly in any such business, or (iv) soliciting any customer of Cool-Leo A/C & Heat for the benefit of a third party that is engaged in such business. Joseph Weberling agrees that this non-compete provision will not adversely affect Joseph Weberling's livelihood.

8. EMPLOYEE'S INABILITY TO CONTRACT FOR EMPLOYER. Joseph Weberling shall not have the right to make any contracts or commitments for or on behalf of Cool-Leo A/C & Heat without first obtaining the express written consent of Cool-Leo A/C & Heat.

9. TERM/TERMINATION. Joseph Weberling's employment under this Contract shall be for an unspecified term on an "at will" basis. If Joseph Weberling is in violation of this Contract, Cool-Leo A/C & Heat may terminate employment without notice and with compensation to Joseph Weberling only to the date of such termination. The compensation paid under this Contract shall be Joseph Weberling's exclusive remedy.

10. COMPLIANCE WITH EMPLOYER'S RULES. Joseph Weberling agrees to comply with all of the rules and regulations of Cool-Leo A/C & Heat.

11. RETURN OF PROPERTY. Upon termination of this Contract, Joseph Weberling shall deliver to Cool-Leo A/C & Heat all property which is Cool-Leo A/C & Heat's property or related to Cool-Leo A/C & Heat's business (including keys, records, notes, data, memoranda, models, and equipment) that is in Joseph Weberling's possession or under Joseph Weberling's control. Such obligation shall be governed by any separate confidentiality or proprietary rights agreement signed by Joseph Weberling.

12. NOTICES. All notices required or permitted under this Contract shall be in writing and shall be deemed delivered when delivered in person or on the third day after being deposited in the United States mail, postage paid, addressed as follows:

Employer:

Cool-Leo A/C & Heat
Dustin Potter
CEO
802 legend spring drive
katy, Texas 77494

Employee:

Joseph Weberling
4514 Atascocita Road
Humble, Texas 77346

Such addresses may be changed from time to time by either party by providing written notice in the manner set forth above.

13. ENTIRE AGREEMENT. This Contract contains the entire agreement of the parties and there are no other promises or conditions in any other agreement whether oral or written. This Contract supersedes any prior written or oral agreements between the parties.

14. AMENDMENT. This Contract may be modified or amended, if the amendment is made in writing and is signed by both parties.

15. SEVERABILITY. If any provisions of this Contract shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision it would become valid or enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited.

16. WAIVER OF CONTRACTUAL RIGHT. The failure of either party to enforce any provision of this Contract shall not be construed as a waiver or limitation of that party's right to subsequently enforce and compel strict compliance with every provision of this Contract.

17. APPLICABLE LAW. This Contract shall be governed by the laws of the State of Texas.

18. SIGNATORIES. This Contract shall be signed by Dustin Potter, CEO on behalf of Cool-Leo A/C & Heat and by Joseph Weberling in an individual capacity. This Contract is effective as of the date first above written.

By: _____

Dustin Potter, CEO
Cool-Leo A/C & Heat

Date: _____

By: _____

Joseph Weberling

Date: _____